

6.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS NOS. 1, 2, 3, AND 4

Tentative Ruling:

GRANT the motion as to RFA's nos.1-4.

For no. 1, Defendant cannot simply object to an RFA because it seeks a legal conclusion. (See, *Burke v. Superior Court* (1969) 71 Cal.2d 276, "When a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial...Otherwise, he should set forth in detail the reasons why he cannot truthfully admit or deny the request.") In RFA no.2, BMW's response is not clear or reasonable. Stating that documents "reflect" something is not the same as BMW admitting the existence of a fact. For no. 3, Defendant again improperly objects based on legal conclusion. The request is asking for a *factual* admission as to the number of days the vehicle was repaired---not a legal conclusion. For RFA no. 4, relevance is not the standard for an objection to this request. Rather, the standard is; is the request reasonably calculated to lead to the discovery of admissible evidence. Whether warranty repairs were performed is reasonably calculated to lead to the discovery of admissible evidence.

Further responses due within 20 days.

No sanctions.